

District- Gaibandha

In the Supreme Court of Bangladesh
High Court Division
(Civil Revisional Jurisdiction)

Present:

Mr Justice Md Atoar Rahman

Civil Revision No 2126 of 2022

Md Anggur Hossen

... pre-emptee-respondent-petitioner

- versus-

Md Monser Ali

...pre-emptor-appellant-opposite party

Mr Bhabesh Chandra Mustafi, Advocate

for the pre-emptee-respondent-petitioner

Mr Anichur Rahman, Advocate

... for the pre-emptor-appellant-opposite party

Heard on: 07.11.2023, 15.11.2023 and
16.12.2023

Judgment on: 13.12.2023

This Rule was issued upon an application under section 115(1) of the Code of Civil Procedure, 1908 calling upon the opposite party to show cause as to why the judgment and order dated 29.03.2022 passed by the learned Joint District Judge, 1st Court, Gaibandha in Miscellaneous Appeal No 07 of 2017 allowing the appeal and thereby reversing the judgment and order dated 16.01.2017 passed by the learned Assistant Judge, Sadullahpur, Gaibandha in Miscellaneous Case No 18 of 2013 rejecting the same should not be set aside and/or passed such other or further orders as to this court may seem fit and proper.

During issuance of the Rule an order was passed staying operation of the impugned judgment and order.

The Opposite party Md Monser Ali being pre-emptor filed Miscellaneous Case No 18 of 2013 in the Court of Assistant Judge, Sadullapur, Gaibandha seeking pre-emption for 0.11 acres of agricultural land under section 96 of the State Acquisition and Tenancy Act, 1950 stating *inter-alia* that the pre-emptor is a co-sharer by inheritance in the case SA Khatian No 261 and the co-sharers opposite parties No 2-6 sold the case land vide a registered deed No 4492 dated 27.08.2013 to the pre-emptee petitioner, a stranger in the case holding, without serving any notice under section 89 of the State Acquisition and Tenancy Act. Hence the pre-emption case.

The present petitioner as pre-emptee-opposite party No 1 contested the case by filling a written objection stating *inter alia* that the pre-emption case was not maintainable. The predecessor of the pre-emptor and seller opposite parties No 2 to 6 Saya Mai sold 1.22 acres of land in favour of the pre-emptee and his brother and mother vide two deeds of sale bearing Nos 3068 and 3069 in the year of 1970 and handed over possession of the said land to the purchasers including the pre-emptee and on the basis of such purchase DP Khatians in respect of the purchased land was prepared in their names. Thereafter in the month of October, 2013 the pre-emptor and the seller opposite parties disclosed that before above selling in the year of 1970 out of such sold

land, in respect of 0.29 acres Saya Mai had secretly created a deed of transfer on 05.04.1969 in favour of the pre-emptor and the seller opposite parties. But said transfer in favour of the pre-emptor and seller opposite parties was not acted upon. Thereafter showing respect to the grandmother Saya Mai the seller opposite parties out of such land in respect of 0.11 acres executed and registered the impugned deed of Heba-Bil-Awaz being No 4492 dated 27.08.2013 to avoid future complicity.

On consideration of the evidence and materials on record the learned Assistant Judge rejected the miscellaneous case by his judgment and order dated 16.01.2017 against which the pre-emptor preferred the Miscellaneous Appeal No 07 of 2017 before the learned District Judge, Gaibandha. On transfer the said miscellaneous appeal was heard by the learned Joint District Judge, 1st Court, Gaibandha who was pleased to allow the appeal by his judgment and order dated 29.03.2022.

Being aggrieved by and dissatisfied with the above judgment and order of the appellate court below the pre-emptee opposite party Md Angur Hossen moved this court with an application under section 115(1) of the Code of Civil Procedure and obtained the present Rule and the order of stay.

Mr Bhabesh Chandra Mustafi, the learned Advocate appearing on behalf of the pre-emptee petitioner has submitted that by the

impugned Heba-Bill-Awaz deed dated 27.08.2013, no land has been transferred in favour of the pre-emptee by the opposite parties No 2 to 6. In support of his submissions he has stated that the pre-emptee petitioner and his brother and mother purchased 1.22 acres of land from the grandmother of the pre-emptor opposite party and seller opposite parties Saya Mai in the year of 1970 vide deeds of sale No 3068 and 3069. But in the year of 2013 for the first time the seller opposite parties and the pre-emptor disclosed that their grandmother Saya Mai created a deed in their favour for which in order to avoid future complicity the opposite parties No 2 to 6 executed and registered the impugned deed in favour of the pre-emptee petitioner although by this deed transfer of such land was not made either by way of gift as mentioned in the deed or by way of sale and thus, the pre-emption case is not maintainable.

Learned Advocate for the pre-emptee petitioner has further submitted that as per the impugned deed the case land was included in the DP Khatian No 238 prepared in the name of the pre-emptee petitioner and others wherein the name of the pre-emptor has not been included as a co sharer and the DP Khatian No 238 in respect of the RS Khatian was made final and published in the official gazette on 22.12.2013 before registration of the impugned deed which was completed under section 60 of the Registration Act on 26.08.2015. Before completion of registration of the impugned deed the case land

including other lands has been separated from the SA Khatian No 261. According to him, since before completion of the registration of the impugned deed under section 60 of the Registration Act the RS Khatian No 238 was finally published on 22.12.2013 in the official gazette the pre-emptor is no more co-sharer in the case RS holding No 238, but the learned Judge of the lower appellate court without considering the legal aspects allowed the appeal having committed an error of law resulting in an error in such decision occasioning failure of justice.

Mr Zakir Hossain, the learned Advocate appearing on behalf of the pre-emptor opposite party has submitted that since by the deed Nos 3068 and 3069, the pre-emptee petitioner and others did not acquire any land, they purchased the case land measuring an area of 0.11 acres from the opposite parties No 2 to 6 by the impugned deed of transfer and to avoid pre-emption collusively the deed has been made as Heba-Bill-Awaz although there is no reason to transfer the case land in favour of the pre-emptee by Heba-Bill-Awaz. Thus, according to him, the impugned transfer deed is an out and out sale and by this deed the case land has been sold for a consideration in favour of the pre-emptee petitioner. Learned Advocate has further submitted that the pre-emptee petitioner is not a co-sharer in the case holding which has been admitted by him during his cross examination as OPW 1. Learned Advocate has finally submitted that although registration of the impugned deed was completed under section 60 of the Registration Act

on 26.08.2015 but as per the provisions of section 47 of the Registration Act the impugned deed should operate from the time of its presentation for registration ie since 27.08.2013 and as such, RS Khatian No 238 would not create any bar to get pre-emption.

I have heard the learned Advocates for both the parties and perused the record along with the impugned judgment and connected papers on record.

On perusal of the registered deeds of sale No 3068 (exhibit Gha) & 3069 (exhibit Umo) it transpires that by these deeds of sale the predecessor-in-interest of the pre-emptor and the seller opposite parties Saya Mai on 07.03.1970 sold 0.60 and 0.62 acres of lands to the pre-emptee and his brother and mother respectively. The exhibit Ka (registered deed of Heba-Bil-Awaz No 5017) shows that by this deed mother of the pre-emptee Most Khuch Mai Bibi on 10.07.2003 transferred her purchased land vide exhibit Umo in favour of the pre-emptee. On perusal of the RS Khatian No 238 (exhibit Kha) it appears that on the basis of above transfers said lands including the case land have been recorded in the name of the pre-emptee and others during RS operation. It also appears that in this RS Khatian No 238 none of the successors-in-interest including the pre-emptor and seller opposite parties has been included therein as tenant. Thus, it appears that sales by Saya Mai in favour of the pre-emptee, his brother and mother on 07.03.1970 vide exhibit Gha & Umo were duly acted upon and as such,

the seller opposite party had no transferable interest in the case land and by the impugned deed of transfer actually no transfer was made whatever may be the nature of transfer.

Apart from this, on perusal of the schedule of the impugned deed of transfer (Heba-Bil-Awaz) No 4492 dated 27.08.2013 (exhibit 2) it appears that the scheduled land was under DP khatian No 238 during RS operation. It transpires that the pre-emption case was filed on 23.09.2013 and registration under section 60 of the Registration Act of the impugned deed was completed on 26.08.2015. It is well settled principle of law that before completion of the date of registration cause of action for filing pre-emption case does not arise. On perusal of the exhibit Kha it appears that on the basis of above mentioned DP khatian No 238 the final RS Khatian No 238 was published in the official gazette on 22.12.2013 before completion of registration of the impugned deed of transfer. It has already been seen that in the RS khatian No 238, which is latest one, in respect of the case land the name of the pre-emptor has not been included. Therefore, the pre-emptor is not a co-sharer in the case holding.

In view of the forgoing discussions and facts of circumstances of the case the pre-emption case is not maintainable and the learned Judge of the appellate court below committed an error of law resulting in an error in his decision occasioning failure of justice which is not

sustainable in law. Accordingly, I find substance in the Rule which deserves to be made absolute.

In the result, the Rule is made absolute, however, without passing any order as to costs. The impugned judgment and order dated 29.03.2022 passed by the learned Joint District Judge, 1st Court, Gaibandha in Miscellaneous Appeal No 07 of 2017 allowing the appeal and thereby reversing the judgment and order dated 16.01.2017 passed by the learned Assistant Judge, Sadullahpur, Gaibandha in Miscellaneous Case No 18 of 2013 rejecting the same is hereby set aside.

Let the lower courts' records along with a copy of this judgment be transmitted at once.